

26STCV05708 26STCV05708

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The Court has

prepared the following list of questions to

help guide the

argument on Tuesday, July 14:

Which

specific allegations in the Complaint relate to conduct as a “publisher”

(e.g. discretion to publish or withdraw, content alteration, etc.) and

which relate to “non-publisher” conduct (e.g. false representations,

ineffective age verification, etc.)? See *Wozniak v. YouTube*,

LLC (2004) 100 Cal App 5th 893 and *Cross*

v. Facebook (2017) 14 Cal App 5th 190.

Which

specific allegations in the Complaint relate to conduct protected by the

first amendment as “creative expression” and which do not? Is there

a point at which first amendment protection would cease if the Court found

a danger to children?

If the

Court determines that some of the complained of conduct constitutes

publishing activity under Section 230 or protected non-commercial speech

under the First Amendment, but not all of the complained of conduct, is

demurrer or striking under section 425.16 appropriate?

Does

Defendant’s speech constitute commercial speech despite the Roblox

platform being free to use?

Questions

regarding the character of specific allegations:

Hypothetically,

how could a decision to not have age verification constitute protected publisher-like activity under Section 230?

How

is allowing communication between children and adults on the platform not publishing activity? Limiting such interactions would involve Defendant not allowing certain speech, and the Angelilli court's analysis of *Estate of Bride by and through Bride v. Yolo Techs., Inc.* (9th Cir. 2024) 112 F.4th 1168, 1181–1182, would seem to apply.

How

is the Robux monetization system not a “neutral tool” used by bad actors, like in *Dyroff v. Ultimate Software Grp., Inc.*, (9th Cir. 2019) 934 F.3d 1093, 1099, which would be protected under Section 230?

Plaintiff's

public nuisance claim is premised on Defendant's marketing activities and addictive design features. (Compl. ¶ 183.) Assuming that the marketing activity is commercial speech subject to reduced First Amendment protections, does the claim survive even if all design features are found to be protected under Section 230?

Must a

defendant's activity invade physical space to constitute an invasion of a public right?

If the

Court were to determine that Defendant's activity need not invade physical space to constitute a nuisance, then why couldn't Plaintiff's public nuisance claim survive based on Defendant's deceptive marketing of a service with certain harmful design features that are not protected under Section 230 or the First Amendment?

Can

Plaintiff identify statements not barred under the statute of limitations and not consisting of puffery that could support its false advertising claim?

Even

if Plaintiff's first and second causes of action didn't survive, why should the Court not uphold Plaintiff's UCL claim under the "unfair" prong?

Are

there other Orders on Motions to Dismiss similar claims against Roblox in addition to the Orders from Texas and Iowa that are Exhibits 11 and 12 to the Huyett Declaration?